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"The trial of Bill Burn" – myth and facts

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By Advocate Lior Harish

The iconic painting called "The trial of Bill Burn" (see below) is regarded by many (including the UK parliament) as portraying the first¹ prosecution under the 'Act to prevent the cruel and improper treatment of Cattle 1822'², also referred to as "The Martin's Act", named after its initiator and advocator Colonel Richard Martin, M.P. for the county of Galway.



The Trial of Bill Burns. This image is in the public domain in the UK and the United States because its copyright has expired. Image courtesy of Wikimedia Commons: http://en.wikipedia.org/wiki/File:Trial_of_Bill_Burns.jpg

The painting portrays the trial of a 'costermonger' (street seller of fruit and vegetables) named Bill Burn, who was prosecuted after having been caught beating his donkey. The prosecutor was none other than the law's legislator, and the person who witnessed the crime – Mr. Martin. According to myth, after hearing the case, the Magistrate was reluctant to convict, and so Mr. Martin called on the donkey to appear before the Magistrate to provide evidence as to the injuries, which resulted in a conviction.

In this blog I would most humbly challenge this myth.

Although based on a true story, I believe the painting does not reflect an accurate state of events. In reality, there was no person called 'Bill Burn' who was prosecuted under the Martin's law, ; Accept nkey was actually brought

to court as evidence. The reality was apparently much less dramatic, but the dramatization itself was a consequence of opposition to the new law.

In order to establish this theory, I must ask you to go back in history with me to Georgian times.

The "Act to prevent the cruel and improper treatment of Cattle 1822" after passing all the readings in both houses of Parliament, received royal assent, and became an official and binding law on 22 July 1822.

Shortly after the Act came into force, Mr. Martin took it upon himself to bring his Act into practice, and personally started enforcing the Act and prosecuting offenders.

Mr. Martin presented quite a few cases based on his Act. However, following in-depth review, through British law and newspapers' archives, no mention of a defendant by the name of "Bill Burn" (Or "William Burn", as would have probably been his full stated name if prosecuted), prosecuted in a case involving Mr. Martin, the Martin's Act, or any other similar criminal case to that end, had been found.

I did manage to track down the case, which I believe was the earliest documented prosecution under Martin's Act, less than three weeks following the royal assent of the Martin's Act, and which most likely inspired and laid the factual foundation to the famous painting.

Almost actual identical reports in the London press, which probably quoted the same original source, at Guildhall stated on August 8th, 1822³ as follows:

"yesterday evening, before the arrival of the magistrate to proceed to business, Richard Martin, Esq. M.P. for the county of Galway, appeared at the office...having in custody two costermongers, and their donkey and cart; and we soon learnt the intention of the Hon. Member was to prosecute Charles Wilsden, one of the costermongers for barbarous conduct to the unfortunate donkey".

The reports further stated that upon being called by the Magistrate to present his defense, Mr. Wilsden had said that it fact the donkey was a jenny ass (a female donkey), and basically confessed to the offence by saying the jenny ass was obstinate and since she had a foal she was not inclined to go to the market and leave the foal at home. He was convicted and sentenced to pay a fine which later, at the request of Mr. Martin was cancelled and he was set at liberty for the offence. (Hereinafter: the Wilsden Case").

Shortly after the "Wilsden case" was published^{Accept} till in 1822, Mr. Jacob Beuler, a well-known British composer of comic and humorous songs, who



was probably exposed to the reports in the press and was seemingly appreciative of neither the case nor Martin's Act⁴, took an old nursery rhyme called "If I had a donkey"⁵, and based on it wrote a humorous poem baring the same name, ridiculing the Martin's Act through an exaggerated description of the Wilsden case.⁶

He replaced the defendant's name with the name "Bill Burn" (An act that can be interpreted as criticism to the bill, which should be burned, according to its opponents, among them the writer) and added the following lines:

"Bills donkey was ordered into court, In which he caused a deal of sport, He cock'd his ears and ope'd his jaws, As if he wish'd to plead his cause."

Since there is no indication to any other similar case, in 1822, involving a defendant named "Bill Burn" or "William Burn", and a donkey, or even bearing similar facts to those in the poem, it would be safe to assume that, in reality, there was no defendant by the name of "Bill Burn" and the real "Bill Burn" upon whose case the poem was based, was actually Charles Wilsden.⁷

It is also safe to assume that no donkey was "ordered into court" as the poem suggests, and that this relevant part was an intentional exaggeration made to further ridicule the occasion and make the song more appealing and interesting.

It is reported in the abovementioned reports that the jenny-ass and the cart were brought to custody together with two defendants. No reports indicate that the jenny ass was brought before the Magistrate. It was however reported that Mr. Martin produced the stick apparently used to beat the jenny ass as evidence to Wilsden's cruel habit of beating her. This is more reasonable since it would have been unlikely in the Georgian conservative era (as it is unlikely today)⁸ that Mr. Martin would have been permitted to enter a donkey into the courtroom. It is also unlikely that an event such as the appearance of a donkey in court would not have been specifically reported by the press, let alone emphasized, especially given the fact that the presentation of the stick used to beat the jenny ass was, in fact, mentioned. Moreover, In terms of evidence law, there was no real need to produce the jenny sss in court, as Wilsden did not deny the allegations, and there was no doubt as to his guilt.

In 1838, Sixteen years following the Wilsden case and Beuler's poem, P. Mathews, who was an artist who probably shared Beuler's agenda, painted the original painting named "The trial of Bill Burn" which according to his own admission was based on the comic song⁹, and is an exact illustration of

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the scene from Beuler's poem, showing the appearance of the donkey in court.

It is my understanding that the artist intended to express the negative view shared by animal's rights opponents of Martin's Act. The defendant Bill Burn is portrayed as condemning Mr. Martin's charges, while the Magistrate and the audience seem amused by the spectacle of a donkey in court, and a copy of Martin's Act is shown thrown on the court's floor in the bottom left of the picture. The entire scene is designed to express ridicule and contempt.

It is obvious that the painting was not based on the artist personal knowledge of the actual Wilsden Case, but rather on the imaginary "hero" Bill Burn, from Beuler's poem.

Years passed by, and as far as Martin's Act is concerned, not only did that bill not burn, to the contrary it became a landmark which led to comprehensive legislation promoting animals' rights and welfare in the United Kingdom, and worldwide, which improves the lives and conditions of numerous animals, donkeys included.

As for the painting which, as explained, was intended to ridicule Mr. Martin and his Act its instructive lesson "took a turn" at one point and became a symbol of Mr. Martin's persistent actions and achievements in promoting animals' rights. The vision in the painting, and the Act itself, is regarded today as an important milestone in the long fight for animals' rights. And since nowadays, animals are recognized as sentient beings, I believe that had jenny the ass, been alive today, she would have felt pride being a part of such an important legacy.

About the author **Advocate Lior Harish**



Co-chairman of the national committee for animals' rights in the Israeli bar association; Co-chairman of the Israeli law firm for the protection of

animals in Israel; Legal advisor – Keren or farm – animals' sanctuary and mutual rehabilitation center ; Member of the Israeli bar association since May 1995





The UK Centre for Animal Law (A-LAW) is a charity that brings together lawyers and other people interested in animal protection law to share experience and to harness that expertise for the benefit of animals.



c/o Emstrey House North
Shrewsbury Business Park
Shrewsbury
SY2 6LG



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